

Judge Mosbarger – Law & Motion – Wednesday, June 10, 2026 @ 9:00 AM
TENTATIVE RULINGS

1. 22CV02594 MOFFITT, DEREK C ET AL V. MOFFITT, TERESA L ET AL

EVENT: Plaintiffs' Motion to Compel Teresa L. Moffitt to Produce Documents Described in Deposition Notice and for Sanctions

As an initial matter, pursuant to the Court's Order dated May 20, 2026, any supplemental reply was to be filed and served "no later than 5:00 p.m. on June 3, 2026." However, even in light of that very clear instruction, the supplemental reply was not filed until June 4, 2026 at 10:49 a.m. There is no explanation as to why the supplemental reply was filed untimely and the Court has declined to consider the arguments therein.

Code of Civil Procedure §2025.480 provides that the deadline for filing a Motion to Compel is "60 days after the completion of the record of the deposition." Based on the additional cases cited by Defendants Teresa L. Moffitt and Theldor Farms, Inc. (collectively "Defendants" herein), the Court finds that the deposition was "complete" when Defendant Teresa L. Moffitt served her objections because "no part of any transcript will be relevant." *Unzipped Apparel, LLC v. Bader* (2007) 154 Cal.App.4th 123, 135. Thus, the 60-day period to file a motion to compel began on that date. See, *Unzipped Apparel, LLC v. Bader*, supra; *Ruttledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164; *Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316; and *Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011. Here, because Plaintiffs Derek C. Moffitt and Sandi Moffitt (collectively "Plaintiffs" herein) did not file their Motion to Compel until more than 60 days after Defendants' objections were served, the Motion is untimely, and is denied.

Defendants' request for sanctions is granted. Sanctions are awarded in favor of Defendants and against Plaintiffs and their counsel of record in the amount of \$2,000, which are to be paid within 30 days' notice of this ruling. Counsel for the Defendants shall prepare and submit a form of order consistent with this ruling within two weeks.

2. 23CV00437 PILLSBURY, CHRISTOPHER H V. NATIONAL BUILDERS, INC ET AL

EVENT: Defendant's Counsel's Motion to be Relieved as Counsel

The Motion to Be Relieved as Counsel is granted, and Stacie Lynn Power is relieved as counsel for Defendant/Cross-Complainant National Builders, Inc. The Court will utilize the form of order submitted by counsel with modification to the future hearing dates in Paragraphs 7 and 9.

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